



CHAPTER cxxx.

An Act to confirm a Provisional Order under the Private A.D. 1911.
Legislation Procedure (Scotland) Act 1899 relating to —
Wellpark (Glasgow) Church and Parish Quoad Sacra.
[18th August 1911.]

WHEREAS His Majesty's Secretary for Scotland has made
the Provisional Order set forth in the schedule hereunto
annexed under the provisions of the Private Legislation Procedure 62 & 63 Vict.
(Scotland) Act 1899 and it is requisite that the said Order should c. 47.
be confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty
by and with the advice and consent of the Lords Spiritual and
Temporal and Commons in this present Parliament assembled
and by the authority of the same as follows :—

1. The Provisional Order contained in the schedule hereunto Confirmation
annexed shall be and the same is hereby confirmed. of Order in
schedule.

2. This Act may be cited as the Wellpark (Glasgow) Church Short title.
and Parish Quoad Sacra Order Confirmation Act 1911.

A.D. 1911.

S C H E D U L E.

WELLPARK (GLASGOW) CHURCH AND PARISH
QUOAD SACRA.

Order to authorise the annexation of Wellpark Parish Quoad Sacra Glasgow to one or more of the adjoining parishes the sale of the Church of that Parish the application of the endowments and the price of the Church to the endowment of a new parish and the provision of a Church for such new parish and other matters relating to these objects.

WHEREAS the church and parish quoad sacra of Wellpark in St. Mungo's or Inner High Church Parish and Springburn Parish Glasgow were disjoined and erected under a petition to the Court of Teinds and decree following thereon dated fifth March one thousand eight hundred and seventy-seven:

And whereas in terms of the said petition and decree a district was disjoined quoad sacra from St. Mungo's or Inner High Church Parish and Springburn Parish aforesaid and was attached to Wellpark Church and along with that church was erected into the church and parish quoad sacra of Wellpark:

And whereas notwithstanding ordinary repair to the fabric the structure of Wellpark Church has become impaired by age and the needs of Wellpark Parish can conveniently and efficiently be served by the modern and immediately adjoining church of Blackfriars Parish which owing to the migration of the population has become almost wholly depopulated:

And whereas it is expedient to remove Wellpark Church to a more suitable site at Colston in the northern part of the city of Glasgow and to mark out and designate and to erect quoad sacra a new district to form the parish thereof and to conjoin the district marked out designated and erected as the present parish quoad sacra of Wellpark in terms of the said petition and decree with one or more of the adjoining parishes:

And whereas it is expedient that the trustees holding the existing endowments for the minister of Wellpark Parish and for keeping up the fabric of Wellpark Church should be authorised to transfer such endowments to the trustees to be appointed

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to act under the deed of constitution for the new church and parish to be applied by them in terms thereof: A.D. 1911.

And whereas the trustees vested in and holding the property of the present Wellpark Church have no power to sell the same and it is expedient that when a church has been provided for the new parish to be erected as aforesaid authority should be given to the said last-mentioned trustees to sell the present Wellpark Church and to apply the proceeds of such sale for the purposes in this Order provided:

And whereas the objects aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows:—

1. This Order may be cited for all purposes as the Wellpark (Glasgow) Church and Parish Quoad Sacra Order 1911. Short title.

2. Subject to the provisions herein-after enacted it shall be lawful for the Court of Teinds to suppress the present parish quoad sacra of Wellpark Glasgow and to authorise the sale of the said church and the application of the endowments of that parish and of the price which may be obtained from the sale of the said church towards the endowment of a church of a new parish quoad sacra to be erected at Colston in the city of Glasgow and the defraying of the cost to be incurred in providing and building such new parish church. Power to the Court of Teinds to suppress parish of Wellpark and apply endowments to new church and parish.

3. When the presbytery of Glasgow and the kirk session of Wellpark shall have built or shall have acquired a church at Colston within the city of Glasgow upon a site and of a size approved of by the presbytery of Glasgow it shall be lawful for the presbytery of Glasgow and the said kirk session to make application to the Court of Teinds to erect such church into a parish church in connexion with the Church of Scotland and to mark out and designate a district to be attached thereto quoad sacra and to disjoin such district quoad sacra from the parish or parishes to which the same or any part thereof may have belonged or been attached and to erect such district into a parish quoad sacra in connexion with the Church of Scotland in accordance with and subject to the provisions of the New Erection of new church and parish.

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A.D. 1911. Parishes (Scotland) Act 1844 and if the Court of Teinds shall be satisfied that it is proper to grant the application the Court of Teinds may find and declare that it is proper that the powers conferred upon it by the immediately preceding section should be exercised and thereupon it shall be lawful for the said court to grant the prayer of the petition for the erection of the new church and parish to annul the decree of the Court of Teinds dated fifth March one thousand eight hundred and seventy-seven whereby the church and parish of Wellpark Glasgow were erected into a church and parish quoad sacra to suppress the said last-mentioned parish to declare that the said church is no longer a parish church to annex the area of the said parish or parts thereof to one or more of the adjoining parishes and to decern that the existing provisions for endowing the minister and maintaining the fabric of the present Wellpark Church shall be applied thereafter in providing the endowment of the minister of the new church and parish paying feu-duty on the site of the new church (if any) and maintaining the fabric of the new church or for such other purposes in connexion with the endowment of the said new church and parish as the said court may determine.

Funds and investments of old church to be transferred to trustees of new church.

4. When decree shall have been pronounced in terms of the immediately preceding section it shall be lawful for the Court of Teinds to grant warrant and authority for the execution of all deeds which may be necessary to give effect to the provision for the transference of the endowment of the minister and of the provision for the maintenance of fabrics to the new church and parish and also to grant warrant and authority to the trustees acting under the existing deed of constitution of Wellpark Church to pay over and convey all funds or investments in their hands to the trustees acting under the deed of constitution which shall be granted by the General Assembly of the Church of Scotland for the new church and parish.

Sale of Wellpark Church and application of proceeds.

5. When decree shall have been pronounced as aforesaid suppressing the present parish of Wellpark it shall be lawful for the Court of Teinds to grant warrant and authority to the trustees for the time being holding the property of Wellpark Church in terms of the titles thereof lodged in the Court of Teinds in the process for disjoining and erecting Wellpark Church and parish to sell all and whole Wellpark Church and the site on which it stands as the same are described in the said titles and in the schedule annexed to this Order and that either by

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public roup or private bargain and to apply the proceeds in paying all costs charges and expenses preliminary to and of and incidental to the confirming of this Order and the expenses of such sale and in paying the balance thereof to the presbytery of Glasgow and the kirk session of Wellpark to be applied by them towards the cost of the said new church and for the purpose of such sale it shall be lawful for the Court of Teinds to authorise the clerk of teinds to deliver up the said titles to the said trustees. A.D. 1911.

6. The new church and parish quoad sacra erected and endowed in terms of the foregoing provisions shall be called the church and parish quoad sacra of Colston-Wellpark Glasgow and on the decree of the Court of Teinds suppressing the present parish of Wellpark and erecting the new parish of Colston-Wellpark being pronounced the minister for the time being and the kirk session of the present parish of Wellpark shall become the minister and the kirk session of the new parish of Colston-Wellpark. New church and parish quoad sacra to be called the church and parish quoad sacra of Colston-Wellpark Glasgow.

7. All costs charges and expenses of and incident to the preparing obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the presbytery of Glasgow and in the event of the sale of the said church as herein-before provided for they shall receive repayment thereof out of the proceeds of such sale. Costs of Order.

SCHEDULE referred to in the foregoing Order.

All and whole that steading of ground lying on the east side of Ladywell Street containing five hundred and fifty-four square yards or thereby imperial standard measure bounded on the north by lands belonging to Hugh Tennent merchant in Glasgow and others along which it extends from the building line of Ladywell Street eastward seventy-seven feet or thereby on the east partly by other lands belonging to the said Hugh Tennent and others and partly by an entry to their said lands from the south fourteen and one-half feet wide along which eastern boundary it extends sixty-nine feet six inches or thereby on the south by a lane eleven feet two inches wide or thereby

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A.D. 1911. along which it extends seventy-four feet or thereby and on the west by Ladywell Street along which it extends sixty-three feet or thereby all lying within the barony parish of Glasgow and shire of Lanark and as delineated on a plan endorsed on and subscribed as relative to a disposition granted by the said Hugh Tennent and others in favour of John Campbell Colquhoun and others dated the twenty-first twenty-third twenty-fourth twenty-sixth twenty-eighth and thirty-first all days of October one thousand eight hundred and thirty-seven together with the church and appurtenances erected on the subjects and free ish and entry thereto.

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